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File No.: EXP202409111

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on May 20, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) requested GOOGLE LLC (hereinafter, the respondent) to delete his data from the URL \*\*\*URL.1.

The complainant argues that the disputed link contains his old CV with his photo, mobile phone number, and the address and phone number of his parents, adding that he has deleted his profile from the website containing the aforementioned information.

Along with the complaint, the complainant submitted a response from the search engine denying the deletion request, dated May 19, 2024, arguing that the disputed link contains content of public interest. SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent has indicated that, on May 19, 2024, it responded to the complainant, duly denying his request. It states that "(...) the disputed search result refers to a document containing the curriculum vitae (CV) of the interested party. This CV, as the interested party acknowledges in his complaint, was published by A.A.A. on his profile on the website \*\*\*URL.2, a job search community (...). The 'FAQ' section of that website, \*\*\*URL.2, expressly states that if at any time the user activated the option for search engines to index their profile – as all indications suggest the interested party did – they must request that this information be removed from their caches if at a later time they choose to delete their profile.

Therefore, in this case, the URL in question links to information that Mr. A.A.A. has authorized and decided to publish online. In this party's view, when an interested party chooses to deliberately publish their personal data, their expectation that this information remains in their private sphere should be diminished. Thus, the right to data protection of the interested party should not prevail, in this context, over the right to freedom of information of the public interested in accessing such information."

The respondent adds that "The information that A.A.A. seeks to block refers to his professional life. On the other hand, it cannot be overlooked that the disputed information in this case clearly pertains to A.A.A.'s professional activity, and the search result that A.A.A. seeks to block refers to information about his professional activity that the interested party himself has published on his profile on a job search website for (...). Such a fact must undoubtedly be taken into account when weighing the fundamental rights at stake."

(...) Inadmissibility of the "right to be forgotten" when processing is necessary to exercise the right to freedom of expression and information

In its Judgment of May 13, 2014 ("Costeja Judgment"), the Court of Justice of the European Union ("CJEU") stated that blocking search results, as requested by A.A.A. here, may constitute an interference with the legitimate interest of users potentially interested in accessing the information in question. (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on August 19, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments it deemed appropriate within ten working days.

The respondent submitted a document stating, in summary, that "(...) Google LLC has re-examined the content of the webpage to which the disputed search result refers and has reconsidered its initial decision. Consequently, Google LLC has proceeded to block the request made by A.A.A."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the

complainant, so that, within ten working days, he may submit any arguments he considers appropriate, not having submitted any arguments within the established period.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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3/10

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that the respondent had provided the necessary response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on August 19, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification,

erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

#### IV

##### Right to be Forgotten

The right to be forgotten is provided for in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

"1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained following a search conducted based on their name links published that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, this must be done when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service."

5/10

This right shall persist even when the retention of the information published on the website to which the link directed is lawful and no prior or simultaneous deletion is carried out.

As stated in the Supreme Court ruling of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from the respect for other fundamental rights apply, among which the freedom of information proclaimed in Article 20 of the Constitution is of particular relevance."

Regarding the nature of the search engine as a data processing controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The ruling of the Court of Justice of the European Union of May 13, 2014, states the following:

Paragraph 28: "(...) by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, stores on its servers, and, where appropriate, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered by Article 2(b) of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between them and personal data."

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out in this context, and therefore must be considered responsible for such processing under the aforementioned Article 2(d)."

Paragraph 35: "On this particular point, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website

publishers, which consists of displaying such data on a webpage, and is added to it."

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the internet search engine without resorting to the website controller, the Court of Justice of the European Union, in its ruling of May 13, 2014 (case C-131/12), has stated:

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6/10

"(...) data processing (...) carried out by the manager of a search engine, can significantly affect the fundamental rights to respect for private life and the protection of personal data when the search conducted using that search engine is carried out based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information related to this person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that engine, would not have been interconnected or could only have been very difficult to do so, and thus allows the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous nature to the information contained in such a list of results (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

"(...) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the manager of a search engine is obliged to remove from the list of results obtained following a search carried out based on the name of a person links to web pages published by third parties that contain information related to this person, even in the event that this name or this information is not removed prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the manager of a search engine allows a "name" to yield a list of results that provide information about a person that may affect their private sphere. Once the data subject has submitted their request for the removal of their personal data to the search engine, it must examine it and proceed, if applicable, to remove the specific links from the list of results, without the need to first or simultaneously contact the website owner.

Furthermore, it is also inferred from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purposes of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that the so-called "right to digital oblivion," which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not allow each individual to construct a past to their liking, obliging publishers.

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7/10

of web pages or to search engine managers to eliminate the processing of their personal data when associated with facts that are not considered positive. It does not justify that those who expose

themselves publicly can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, removing negative information from the Internet, "positioning" the results of Internet searches at their whim, so that the most favorable occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country.

Equally relevant is the doctrine collected in the ruling of the Audiencia Nacional, dated June 21, 2019, which specifies, in its fifth legal basis, the following, in relation to information related to the professional life of the interested party:

(...) "General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in having access to information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the predominant interest of the public in having access to the information in question as a result of this inclusion.

In the case at hand, entering into the weighing of the rights and interests at stake, it must be taken into account, first of all, that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant for modulating the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015."

In this sense, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and inc v. AEPD and Mario Costeja C-131/12), which states: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it relates to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)."

When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all of its content is protected by the freedom of information - in this case, freedom of expression - but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or intimacy of the concerned person and that are revealed as 'manifestly'...

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8/10

"unnecessary and irrelevant to the public interest of the information" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time elapsed. On this issue, the National Court declared in its ruling dated November 8, 2017, the following: "Moreover, unlike the first link, an excessive amount of time has not elapsed between the date the cancellation request was made to the search engine and the date of the news publication. Indeed, since the date the news was published (August 2011) and the date the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the circumstances of the case as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: "Even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when such data is no longer necessary in relation to the purposes for which it was collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent, or are excessive in relation to these purposes and the

time elapsed."

V

## Conclusion

Once the documentation in the file has been examined, it is observed that after conducting a search based on the name of the claimant, a list of results is accessed in which the questioned URL appears, publishing information and personal data that are not of public interest; therefore, the right to data protection of the claimant must prevail over the right to freedom of expression and information.

Maintaining the dissemination of the information may discredit the personal life of the claimant, affecting the rights to honor, privacy, and protection of personal data; thus, it is understood that the processing of data is not necessary, resulting in an infringement of the fundamental right regarding the private life of the claimant. For all these reasons, the personal data from the disputed URLs must be delisted and made inaccessible through an internet search concerning the name of the claimant, in order to prevent the dissemination of information that may be harmful to the invoked rights, with the autonomous right to data protection prevailing over freedom of expression and information due to the lack of relevance and public interest.

In the case analyzed here, once the documentation in the file has been examined, it is observed that, while it is true that the respondent denied the right to deletion of the URL exercised by the claimant, considering that it referred to information that seemed to present relevance and public interest, during the processing of this procedure, it has reconsidered its decision and has proceeded to block the requested URL, which no longer appears.

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9/10

This Spanish Agency for Data Protection must clarify that the Judgment of the Court of Justice of the European Union of May 13, 2014, established that "the operator of a search engine is obliged to remove from the list of results obtained following a search carried out based on a person's name links to web pages published by third parties that contain information relating to that person, even in the event that this name or this information is not deleted prior to or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself."

The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, where appropriate, deny the request with justification indicating the reasons why it is not appropriate to consider the right in question.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge GOOGLE LLC with NIF 770493581, to send to the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why it is not appropriate to attend to the request, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the

LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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10/10

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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